

Approved, SCAO



2025-002760-CZ

CCR-SAC

NOT PROPOSED

STATE OF MICHIGAN

JUDICIAL DISTRICT
JUDICIAL CIRCUIT
COUNTY PROBATE

SUMMONS AND COMPLAINT

2025-002760- **CZ**
HON. KENNETH S. HOOPES

Court address

Court telephone no.

990 Terrace St Muskegon MI 49442

231-724-6294

Plaintiff's name(s), address(es), and telephone no(s).

Andrew J. Pigors ✓
1977 Whitehall rd lot 17
Muskegon MI 49445 231-903-5600

Plaintiff's attorney, bar no., address, and telephone no.

Defendant's name(s), address(es), and telephone no(s).

Shady Oaks MHP LLC
Homes of America LLC
Aldan Global Capital LLC
1977 Whitehall rd
Muskegon MI 49445
231-244-4123KAREN D. BUTE
MUSKEGON COUNTY CLERK
FILED
JUN 13 2025**SUMMONS** NOTICE TO THE DEFENDANT: In the name of the people of the State of Michigan you are notified:

1. You are being sued.
2. **YOU HAVE 21 DAYS** after receiving this summons to **file a written answer with the court** and serve a copy on the other party or take other lawful action with the court (28 days if you were served by mail or you were served outside this state).
3. If you do not answer or take other action within the time allowed, judgment may be entered against you for the relief demanded in the complaint.

Issued 06/13/2025	This summons expires 09/12/2025	Court clerk Karen D. Bute 06/13/2025 03:51 PM
----------------------	------------------------------------	--

Family Division Cases (The following is information required in the caption of every complaint designated by the plaintiff.)

- ☐ This case involves a minor who is under the continuing jurisdiction of another Michigan court. The name of the court, file number, and details are on page ____ of the attached complaint.
- ☐ There is no other pending or resolved action within the jurisdiction of the family division of circuit court involving the family or family members of the parties.
- ☐ An action within the jurisdiction of the family division of the circuit court involving the family or family members of the parties has been previously filed in ____ Court.
- The action ☐ remains ☐ is no longer pending. The docket number and the judge assigned to the action are:

Docket no.	Judge	Bar no.
------------	-------	---------

Civil Cases (The following is information required in the caption of every complaint and is to be completed by the plaintiff.)

- ☐ This is a business case in which all or part of the action includes a business or commercial dispute under MCL 600.8035.
- ☒ There is no other pending or resolved civil action arising out of the same transaction or occurrence as alleged in the complaint.
- ☐ A civil action between these parties or other parties arising out of the transaction or occurrence alleged in the complaint has been previously filed in ____ Court.
- The action ☐ remains ☐ is no longer pending. The docket number and the judge assigned to the action are:

Docket no.	Judge	Bar no.
------------	-------	---------

VENUE

Plaintiff(s) residence (include city, township, or village) 1977 Whitehall rd lot 17 Muskegon	Defendant(s) residence (include city, township, or village) 1977 Whitehall rd Muskegon
Place where action arose or business conducted 1977 Whitehall rd Muskegon	

Date

Signature of attorney/plaintiff

6/13/2025

ADCO

If you require special accommodations to use the court because of a disability or if you require a foreign language interpreter to help you fully participate in court proceedings, please contact the court immediately to make arrangements.

STATE OF MICHIGAN 14th JUDICIAL DISTRICT JUDICIAL CIRCUIT COUNTY	COMPLAINT Page 1 of 7 pages	CASE NO. and JUDGE HON. KENNETH S. HOOPES 2025-002760- CZ
--	---------------------------------------	---

Court address **990 Terrace St Muskegon MI 49442** Court telephone no. **231-724-6224**

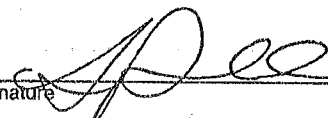
Plaintiff's name, address, and telephone no. Andrew J. Pigers 1977 Whitehall rd lot 17 Muskegon MI 49445 231-903-5690
Plaintiff's attorney, bar no., address, and telephone no. Profer

Defendant's name, address, and telephone no. Shady Oaks MHP LLC Homes of America LLC Aldan Global Capital 1977 Whitehall rd Muskegon MI 49445

Defendant materially breached a court ordered conditional judgement entered April 16, 2025, Alleging defendants violated through unauthorized rent increases, unlawful water shut offs, May 20 2025, and retaliatory billing during an EGLE Sewage violation.

Shady Oaks is no longer licensed, or is no longer doing business in the state of Michigan as of April, 2025, yet continued to evict charge in its name.

6-12-2025
Date


Signature

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC, and
ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. 2025-002760-CZ
Hon. KENNETH S. HOOPES

**VERIFIED COMPLAINT FOR DECLARATORY AND INJUNCTIVE
RELIEF, DAMAGES, AND VIOLATION OF CIVIL RIGHTS**

INTRODUCTION

This is a civil action for declaratory and injunctive relief, compensatory and punitive damages, and enforcement of constitutional and statutory protections. Defendants engaged in a coordinated scheme of unlawful conduct, including but not limited to rent manipulation, environmental neglect, fabrication of financial records, illegal eviction procedures, and the misuse of entity registrations in housing court.

These actions culminated in the forced displacement of Plaintiff Andrew J. Pigors from his lawfully owned home at Lot 17, 1977 Whitehall Road, Muskegon, Michigan, despite full rent payment and while critical health and safety violations persisted. The conduct described herein constitutes violations of:

- MCL 600.2918 (wrongful eviction)
- MCL 554.139 (habitability failures)
- MCL 445.903 (consumer fraud)

- **MCL 125.2301 et seq. (mobile home licensing)**
- **Michigan Constitution, Article I, §§ 2, 17 (equal protection and due process)**
- **42 U.S.C. § 1983 (civil rights deprivation under color of law)**

This Court's equitable powers are invoked to prevent irreparable harm and ongoing statutory violations. No other forum or remedy is adequate under **MCR 2.221**.

I. PARTIES

1. **Plaintiff Andrew J. Pigors** is a resident of Muskegon County and the lawful owner of a manufactured home formerly situated at Lot 17 in Shady Oaks Park.
 2. **Defendant Shady Oaks Park MHP LLC** was the licensed operator of the park until it ceased operations without legally recognized succession.
 3. **Defendant Homes of America LLC** is a Delaware-registered corporate landlord which assumed control of Shady Oaks operations, issued ledgers, and initiated unlawful eviction proceedings.
 4. **Defendant Alden Global Capital LLC** is a private equity firm that controls Homes of America's asset management policies, rent practices, and tenant displacement protocols.
-

II. JURISDICTION AND VENUE

5. This Court has general equitable jurisdiction pursuant to **MCL 600.605** and the authority to issue injunctive relief under **MCR 3.310**.
 6. Venue is proper in Muskegon County under **MCL 600.1621**, as all relevant events and property are located therein.
 7. Federal claims under **42 U.S.C. § 1983** are properly before this Court under **MCL 600.101–8411**, with supplemental jurisdiction preserved under **28 U.S.C. § 1367**.
-

III. FACTUAL ALLEGATIONS

8. Plaintiff lawfully leased a mobile home site from Defendants at a base rent of \$395/month.
 9. On or about **March 31, 2024**, Plaintiff was coerced into signing a lease at **Cricklewood MHP**, raising rent to **\$695/month**, under threat of eviction.
 10. No updated lease was provided when rent increased again to **\$720/month** in **April 2025**, in violation of notice and contract law.
 11. Defendants imposed unauthorized fees and inflated utility charges—particularly for trash and water/sewer—in violation of **MCL 125.2328(1)(b)**.
 12. Rent for all months through **December 2024** was fully paid via **MDHHS-CERA assistance**, acknowledged in open court on **April 16, 2025**.
 13. Defendants knowingly fabricated rental arrears, submitted false ledgers in court, and listed charges under the name “Shady Oaks Park MHP LLC,” which was no longer a registered operator.
 14. On **May 20, 2025**, water was shut off to Plaintiff’s home without notice while his minor child was present, constituting **constructive eviction**.
 15. From **February to May 2025**, raw sewage remained on Plaintiff’s lot. Despite **EGLE** involvement, no repairs occurred. (*See Exhibit B.*)
 16. On **June 9, 2025**, Defendants forcibly removed Plaintiff, seized his property, and disposed of his home—despite full rent payment and active legal filings—violating **MCL 600.2918** and the **Due Process Clause of the Michigan Constitution**.
-

IV. CAUSES OF ACTION

COUNT I – WRONGFUL EVICTION (MCL 600.2918)

17. Defendants used unlawful means—including utility shutoff, entity misrepresentation, and false documentation—to evict Plaintiff outside judicial process.

COUNT II – BREACH OF IMPLIED WARRANTY OF HABITABILITY (MCL 554.139)

18. Defendants failed to maintain habitable conditions (e.g., sewage, potable water) while continuing to charge rent and fees.

COUNT III – FRAUD / MISREPRESENTATION

19. Defendants knowingly presented falsified rent balances and omitted exculpatory evidence to induce a judicial error.

COUNT IV – PROCEDURAL DUE PROCESS VIOLATION (Art I § 17)

20. Plaintiff was denied fair notice and a meaningful opportunity to be heard, in violation of both state and federal constitutional rights.

COUNT V – CIVIL CONSPIRACY (MCL 600.2925a)

21. Defendants acted in concert to obscure corporate identity, falsify billing records, and unlawfully dispossess Plaintiff.

COUNT VI – CONSUMER PROTECTION ACT VIOLATION (MCL 445.903)

22. Defendants engaged in unfair trade practices by coercing lease execution and omitting material facts regarding charges and operational authority.

COUNT VII – MOBILE HOME COMMISSION ACT VIOLATION (MCL 125.2301 et seq.)

23. Defendants operated the park without a valid license and failed to comply with mandatory safety and disclosure laws.

COUNT VIII – NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

24. Plaintiff and his minor child experienced extreme emotional distress due to raw sewage, abrupt loss of utilities, and forced eviction.

COUNT IX – CONVERSION / TRESPASS TO CHATTEL (MCL 750.362 as civil analog)

25. Defendants damaged, discarded, or wrongfully withheld Plaintiff's personal property during unlawful eviction, without inventory or due process.

COUNT X – VIOLATION OF 42 U.S.C. § 1983

26. Defendants' conduct—facilitated or tolerated by state court actors—deprived Plaintiff of federally protected rights without adequate legal recourse.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court:

- A. Declare Defendants' eviction unlawful and void;
- B. Issue preliminary and permanent injunctions barring further dispossession, retaliation, or collection;
- C. Restore possession or award replacement value of the home and lost property;
- D. Award compensatory damages exceeding \$25,000 for economic loss and emotional distress;
- E. Award punitive damages against all Defendants for willful and malicious conduct;
- F. Void any alleged arrears based on falsified ledgers or unlicensed billing;
- G. Award attorney fees and costs as authorized by statute or equity;
- H. Preserve federal claims pursuant to 42 U.S.C. § 1983 and 28 U.S.C. § 1367;
- I. Order production and preservation of evidence (including water shutoff records, rent ledgers, entity registrations, and communication logs) to prevent spoliation;

J. Permit amendment of this complaint under MCR 2.118(C) as additional facts become available;

K. Grant any further relief this Court deems just and proper.

VI. VERIFICATION UNDER MCR 2.114(B)

I, Andrew J. Pigors, verify under penalty of perjury that the foregoing allegations are true to the best of my knowledge, information, and belief. I acknowledge that sanctions may apply under MCR 1.109(E) and MCR 2.114(D) if this verification is knowingly false.

Dated: June 12, 2025
Respectfully submitted,

/s/ Andrew J. Pigors
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Rd.
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com



☒ SECTION I - CORE PLEADINGS (TRIAL & EMERGENCY RELIEF)

Document	Type	Legal Purpose
----------	------	---------------

☒ VERIFIED_COMPLAINT_FINAL.docx		Civil Complaint Declaratory + Injunctive + Damages Relief
---	--	---

☒ MOTION_TRO_AND_ORDER.docx	Emergency Motion	
---	------------------	--

	Temporary Restraining Order	
--	-----------------------------	--

☒ PROPOSED_ORDER_TRO.docx	Order (Unsigned)	
---	------------------	--

	Judge Signature - Immediate	
--	-----------------------------	--

☒ SECTION II - SWORN STATEMENTS & DECLARATIONS

Document	Affidavit/Declaration	Role
----------	-----------------------	------

☒ 01_STATEMENT_OF_HARM.docx	Sworn Narrative	Factual grounding + systemic harm
---	-----------------	-----------------------------------

☒ 02_AFFIDAVIT_OF_DAMAGES.docx	Itemized Damages	Statute-linked claims totaling \$20,632.14
--	------------------	--

☒ SWORN_NARRATIVE_SYSTEMIC_HARM_FINAL.docx	Affidavit (Exh. I)	Constitutional and public harm basis
--	--------------------	--------------------------------------

☒ SECTION III - EXHIBITS (A-I + Addendum Reserved)

Label	Description	Status
-------	-------------	--------

☒ A	EGLE Violation Notice (VN-017235)	Attached
---------------------------------------	-----------------------------------	----------

☒ B	Rent Ledgers Showing Overcharges	Attached
---------------------------------------	----------------------------------	----------

☒ C	Coercive Buyout Email	Attached
---------------------------------------	-----------------------	----------

☒ D	Ledger Suppression/No Response	Attached
---------------------------------------	--------------------------------	----------

☒ E	Shady Oaks Response to EGLE	Attached
---------------------------------------	-----------------------------	----------

☒ F	Timeline Matrix	Attached
---------------------------------------	-----------------	----------

☒ G	Utility Overbilling (Sewer, Water, Trash)	Attached
---------------------------------------	---	----------

☒ H	Entity Chain Map (Alden+HOA+Shady Oaks)	Attached
---------------------------------------	---	----------

☒ I	Sworn Narrative (Merged as Affidavit + Exhibit)	Attached
---------------------------------------	---	----------

☒ GG	Damages Schedule Summary Sheet	Attached
--	--------------------------------	----------

☒ HH-JJ	Reserved via 03_ADDENDUM_EXHIBIT_LIST.docx	
---	--	--

☒ Legal		
---	--	--

placeholder using MRF 1006. MRF 901. MCR 2.302(G)

Site Report

Shady Oaks Park MHP



1977 Whitehall Road
Muskegon, MI 49445

Basin	Muskegon
County	Muskegon
HUC12	040601021003
HUC8	04060102
TR	10N17W
TRS	10N17W01
TRSQQ	10N17W01NENE

Victor Ave

O

Alternate IDs

Site Number EN6C-ZRGQ-JQW

Environmental Interests

Site Contacts

Shady Oaks Park MHP
1977 Whitehall Road
Muskegon MI 49445



PROFILE

MAP

COMPLIANCE

DOCUMENTS

Evaluations

Total 2

Violations

Total 2

Compliance

Total 1

Total

Determination Date



Program

03/20/2025

NPDES - SSO - Failure to Notify Within 24 Hours

ORIGINATING SYSTEM

NOTES

Program: WRD - NPDES; SSO - Failure to Notify Within 24 Hours; Identifying Evaluation: E-94371; Status: Active - Reviewed/Evaluated

CITATIONS

Statute: SSO - Failure to Notify Within 24 Hours

03/20/2025

NPDES - SSO - Discharge

ORIGINATING SYSTEM

NOTES

Program: WRD - NPDES; SSO - Discharge; Identifying Evaluation: E-94371; Status: Active - Reviewed/Evaluated

CITATIONS

Permit Language: SSO - Discharge

Shady Oaks Park MHP : EN6C-ZRGQ-JQW
Groundwater – Reconnaissance Inspection

Inspector: Connor O'Brien

Start Date: 03/20/2025

Groundwater - Reconnaissance Inspection

1. Facility Designated Name:	Shady Oaks Park MHP			
2. Permit Number:	NA			
3. Inspection Date:	03/20/2025			
4. Inspection Purpose/Description:	Complaint/Unpermitted			
5. Inspection Participant Information:				
Participant Name	Title	Affiliation	Phone Number	Email Address
Amanda St. Amour	EQA	WRD-GRDO		
Connor O'Brien	EQA	WRD-GRDO		

6. Opening Conference Notes:

A complaint was received from a resident of the mobile home park on or around March 18, 2025. On 3/18 the complainant was contacted for additional information and to be notified that EGLE would be conducting a site visit. The complainant reported an ongoing problem with recurring surfacing sewage from the ground on a vacant lot (lot # 21) across the street from him. He reported that the MHP is connected to municipal sewer and submitted photographs of the pooling effluent.

7. Observations and Discussion

Upon site inspection on 3/20/2025, the location appeared to be mostly dry, however, residual signs of pooled sewage effluent were still visible. Contact was made with the complainant and two other neighboring residents, who also mentioned the surfacing sewage, offensive odor, and/or plumbing backups. EGLE staff observed a septic or holding tank on the lot with an unsecured lid. It is likely this holding tank is the cause of the sewage surfacing due to periodic overflows. There were also large trees on the lot that may be causing root intrusion to the tank and its' connected plumbing. One neighbor claimed to be familiar with the design layout of the sewage system servicing the park and described a series of holding tanks and gravity delivery lines that lead to a municipal sewer line outside the park. He stated that based on his observations, the holding tank(s) and sewage system within the park are infrequently serviced.

Areas Evaluated:

8a. Analytical Methodology	Not Applicable
8b. Facility Site Review	Un-Satisfactory
8c. Laboratory	Not Applicable
8d. Operation & Maintenance	Un-Satisfactory
8e. Operator Certification and Facility Classification	Not Applicable
8f. Permit Review	Not Applicable
8g. Records, Submittals and Reporting	Not Applicable
8h. Self-Monitoring Program	Not Applicable

Shady Oaks Park MHP : EN6C-ZRGQ-JQW
Groundwater – Reconnaissance Inspection

Inspector: Connor O'Brien

Start Date: 03/20/2025

Groundwater - Reconnaissance Inspection

8i. Other

Not Applicable

9. Is the facility in compliance with the general discharge standards under Rule 2204 (listed below)? If any standard is not being met, describe in comments.

Rule 2204 Requirement

	In Compliance	Not In Compliance
Not currently nor likely to become injurious		X
Does not cause runoff to, ponding on, or flooding of adjacent properties		X
Does not cause erosion	X	
Does not cause nuisance conditions (such as odors, vectors, noise, pathogens, or changes in aesthetic properties of gw)		X
Meets adequate property boundary setbacks*		
Meets water supply well setbacks under the safe drinking water act**		
No evidence that the discharge could create a facility as defined under Part 201		

10. Is the facility in compliance with the general discharge prohibitions under Rule 2205? If either of the two standards is not being met, describe in comments.

Rule 2205 Requirement

	In Compliance	Not In Compliance
The facility does not discharge through a general purpose floor drain (unless authorized under 2210(v), 2215, or 2218)		
The discharge does not originate from a structure within 200 feet of an available public sanitary sewer system		

11. Closing Conference Notes:

12. Were photographs taken?

☒ Yes ☐ No

Photographs submitted to EGLE prior to site visit by complainant.

13. Inspection Completed By:

Connor O'Brien

Shady Oaks Park MHP : EN6C-ZRGQ-JQW
Resource - General - Complaint - Site Investigation Report

Inspector: Connor O'Brien

Start Date: 03/20/2025

General Information

Complaint No.

Inspected By:

Connor O'Brien

Date:

03/20/2025

Investigation Findings

Violation of WRD administered statutes or permit conditions?

☒ Yes ☐ No

Parts:

Other

Part 22, R 323.2204 (2)(b)

WRD Permit Issued?

☐ Yes ☒ No

Please fill out the table regarding permits.

Permit No.

Issued

Expires

Construction in Progress?

☐ Yes ☐ No ☒ NA

Equipment on Site?

☐ Yes ☒ No

Construction Completed?

☐ Yes ☐ No ☒ NA

WRD history with property owner?

☐ Yes ☒ No

If yes, permit or complaint?

Permit or Complaint

File No.

WRD history with contractor?

☐ Yes ☒ No

If yes, permit or complaint?

Permit or Complaint

File No.

Apparent purpose of project:

NA

Describe project disturbance and dimensions:

NA

Describe impacts to public health, safety, and natural resources:

Surface pooling of untreated or partially treated sewage within the immediate vicinity of homes

Apparent alternatives to project:

NA

Local or DEQ permits posted on site:

NA

Note to Plaintiff: The summons is invalid unless served on or before its expiration date.

PROOF OF SERVICE

SUMMONS AND COMPLAINT
Case No. _____

TO PROCESS SERVER: You are to serve the summons and complaint not later than 91 days from the date of filing or the date of expiration on the order for second summons. You must make and file your return with the court clerk. If you are unable to complete service you must return this original and all copies to the court clerk.

CERTIFICATE / AFFIDAVIT OF SERVICE / NONSERVICE

☐ **OFFICER CERTIFICATE**

OR

☐ **AFFIDAVIT OF PROCESS SERVER**

I certify that I am a sheriff, deputy sheriff, bailiff, appointed court officer, or attorney for a party (MCR 2.104[A][2]), and that: (notarization not required)

Being first duly sworn, I state that I am a legally competent adult who is not a party or an officer of a corporate party, and that: (notarization required)

- ☐ I served personally a copy of the summons and complaint.
☐ I served by registered or certified mail (copy of return receipt attached) a copy of the summons and complaint, together with _____

List all documents served with the Summons and Complaint

_____ on the defendant(s):

Defendant's name	Complete address(es) of service	Day, date, time

- ☐ I have personally attempted to serve the summons and complaint, together with any attachments, on the following defendant(s) and have been unable to complete service.

Defendant's name	Complete address(es) of service	Day, date, time

I declare that the statements above are true to the best of my information, knowledge, and belief.

Service fee	Miles traveled	Fee	
\$		\$	
Incorrect address fee	Miles traveled	Fee	TOTAL FEE
\$		\$	\$

Signature _____

Name (type or print) _____

Title _____

Subscribed and sworn to before me on _____ Date _____ County, Michigan.

My commission expires: _____ Date _____ Signature: _____ Deputy court clerk/Notary public

Notary public, State of Michigan, County of _____

ACKNOWLEDGMENT OF SERVICE

I acknowledge that I have received service of the summons and complaint, together with _____ Attachments

_____ on _____
Day, date, time

Signature _____ on behalf of _____



2025-002760-CZ

CCR-MEP

NOT PROPOSED

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,
Defendants.

v.

Case No.: 2025-002760-CZ

Hon.: KENNETH S. HOOPES

MOTION FOR EX PARTE TEMPORARY RESTRAINING ORDER

(MCR 3.310(B); Emergency Equitable Relief)

NOW COMES Plaintiff, ANDREW J. PIGORS, in pro per, and respectfully moves this Honorable Court to issue an Ex Parte Temporary Restraining Order pursuant to MCR 3.310(B). In support of this Motion, Plaintiff states:

I. NO NOTICE CERTIFICATION *(MCR 3.310(B)(1)(b))*

Because immediate and irreparable harm will result before a hearing can be held, Plaintiff seeks ex parte relief. Plaintiff certifies that:

- A Verified Affidavit has been submitted under MCR 2.114(B);
- The facts support a finding of imminent injury;

- Plaintiff will serve full notice to Defendants immediately upon entry of emergency relief, and file proof of service accordingly.
-

II. FACTUAL GROUNDS FOR EMERGENCY RELIEF

Plaintiff is the legal owner and resident of a manufactured home located at Lot 17, 1977 Whitehall Road, Muskegon, Michigan, within Shady Oaks Park MHP.

Defendants have committed the following acts:

- **March 26, 2024:** Coerced Plaintiff into signing a lease under threat of eviction;
- **Rent Increases:** Raised rent from \$395 to \$695 to \$720 without valid lease amendments or disclosures;
- **CERA Rejection:** Rejected MDHHS-CERA payments pre-approved through December 2024;
- **May 20, 2025:** Shut off water to Plaintiff's home without notice while a minor child was present;
- **Fabricated Ledgers:** Submitted falsified rent records in court, omitting state-funded rent assistance;
- **Unlicensed Operations:** Continued using the name "Shady Oaks Park MHP LLC" despite lacking a valid license under Michigan law.

These acts violate:

- **MCL 600.2918** (constructive/unlawful eviction);
 - **MCL 600.5720** (retaliation);
 - **MCL 554.139** (habitability failures);
 - **MCL 125.2301 et seq.** (mobile home park licensure);
 - **Mich. Const. 1963, Art I §§ 2, 17** (equal protection and due process).
-

D. Preserve the status quo pending a full hearing on a Motion for Preliminary Injunction under MCR 3.310(A);

E. Set a hearing within 14 days as required by MCR 3.310(B)(2);

F. Grant such other relief as is just and equitable.

V. POST-RELIEF NOTICE & SERVICE PLAN

Plaintiff will serve all Defendants with this Motion, the Verified Complaint, Affidavit, and any entered order via certified mail or personal service, and will file Proof of Service (MC 02) as required.

VI. CERTIFICATION UNDER MCR 3.310(B)

Pursuant to MCR 3.310(B)(1)(b), I certify under penalty of perjury:

- That the factual basis for this Motion is verified and submitted;
- That irreparable harm is ongoing and justifies emergency action;
- That I will notify and serve Defendants immediately after any TRO is entered;
- That this request is made in good faith and not for improper purpose.

Dated: June 12, 2025

Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors, Plaintiff In Pro Per

Lot 17, 1977 Whitehall Road

Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com



2025-002760-CZ

CCR-MOT

NOT PROPOSED

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

MOTION FOR PRELIMINARY INJUNCTION

(MCR 3.310(A); Hearing-Based Injunctive Relief)

ANDREW J. PIGORS,
Plaintiff,

**SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,**
Defendants.

v.

Case No.: 2025-002760-CZ
Hon. KENNETH S. HOOPES

NOW COMES Plaintiff, Andrew J. Pigors, in pro per, and respectfully moves this Honorable Court to enter a Preliminary Injunction pursuant to MCR 3.310(A), and in support of this motion states as follows:

I. PRIOR ACTIONS AND PROCEDURAL HISTORY

1. Plaintiff has previously filed a Verified Complaint, a Verified Affidavit in Support of TRO, and a Motion for Ex Parte Temporary Restraining Order. Those filings were either granted by this Court or remain pending entry.
2. All facts, exhibits, and legal authorities previously presented—including Exhibits A through G—are incorporated by reference as though fully stated herein.
3. This Motion is brought pursuant to MCR 3.310(A)(1) and MCR 3.310(B)(3) to continue emergency protections, establish a hearing-based injunction, and preserve Plaintiff's constitutional and statutory rights through the pendency of this case.

II. FACTUAL BASIS FOR INJUNCTION

- The public interest demands enforcement of landlord licensure, protection of vulnerable tenants, and prevention of retaliatory evictions while housing cases remain pending.
-

IV. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

A. Issue a Preliminary Injunction restraining Defendants from:

- Initiating or continuing any eviction proceedings;
- Disconnecting or interfering with utility services;
- Charging unauthorized rent increases, fees, or utility surcharges;
- Harassing, contacting, or retaliating against Plaintiff or his child;

B. Order restoration of utility services and, where applicable, physical re-possession of Plaintiff's residence;

C. Maintain the status quo until this case is adjudicated on the merits;

D. Schedule a full evidentiary hearing pursuant to MCR 3.310(B)(3) within 14 days of TRO issuance;

E. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

Dated: June 12, 2025

/s/ Andrew J. Pigors
Andrew J. Pigors, Plaintiff In Pro Per
Lot 17, 1977 Whitehall Road
Muskegon, MI 49445
Email: andrewjpigors@gmail.com
Phone: 231-903-5690



2025-002760-CZ
CCR-MOT
NOT PROPOSED

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC,
HOMES OF AMERICA LLC,
ALDEN GLOBAL CAPITAL LLC,
Defendants.

Case No. 2025-002760-CZ

Hon. KENNETH S. HOOPES

MOTION FOR JUDICIAL NOTICE OF LARA AND EGLE FACTS

NOW COMES Plaintiff, Andrew J. Pigors, in propria persona, and pursuant to Michigan Rule of Evidence 201(b) and Michigan Court Rule 2.113(C), respectfully moves this Honorable Court to take judicial notice of certain facts regarding the business and regulatory status of the Defendants as reflected in official records of the State of Michigan.

1. Shady Oaks Park MHP LLC is a domestic limited liability company organized under Michigan law on June 13, 2016 (Entity ID E8614F).
2. According to records from the Michigan Department of Licensing and Regulatory Affairs (LARA), Shady Oaks Park MHP LLC last filed its annual report in 2017.
3. Under MCL 450.4207(1) and MCL 450.4802(1), failure to file annual reports for two consecutive years subjects the company to automatic dissolution by operation of law.

4. The LARA documentation included in this case (Exhibit I) demonstrates no filings or updates since 2017, supporting a conclusion of automatic dissolution.

5. Additionally, the Michigan Department of Environment, Great Lakes, and Energy (EGLE) has issued Notice of Violation VN-017235 and other compliance citations against the mobile home park, as detailed in Exhibits B and G.

6. Under MCL 125.2307, no mobile home park may operate in the State of Michigan without valid licensure through EGLE.

7. The above facts are verifiable through official state records, are not subject to reasonable dispute, and their accuracy cannot reasonably be questioned.

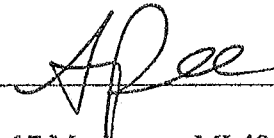
These facts are derived from government-maintained public records and are properly subject to judicial notice under MRE 201(b)(2). This Court may take such notice at any stage pursuant to MRE 201(c).

WHEREFORE, Plaintiff respectfully requests that this Court take judicial notice of the corporate dissolution and regulatory noncompliance of Shady Oaks Park MHP LLC, as documented by LARA and EGLE, and deem these facts established for purposes of this proceeding.

Respectfully submitted,

Dated: 6/13/2025

Signature: _____



Andrew J. Pigors, 1977 Whitehall Road Lot 17 Muskegon, MI 49445

(231) 903-5690 | andrewjpigors@gmail.com